

STATE OF VERMONT
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE:
CHRISTINA THURSTON
Roster No. 097-0068850

Docket No. 2010-382

STIPULATION AND CONSENT ORDER

NOW COMES the State of Vermont by and through its State Prosecuting Attorney Edward G. Adrian and the Respondent, Christina Thurston, who stipulate and agree as follows:

Board Authority

1. The Board of Allied Mental Health Practitioners (Board) has jurisdiction to investigate complaints of unprofessional conduct pursuant to 3 V.S.A. § 127, 129, 129a, and 26 V.S.A. §§ 4091, 4093.
2. Failing to practice competently by reason of any cause on a single occasion or on multiple occasions, which includes failure to conform to the essential standards of acceptable and prevailing practice is unprofessional conduct. 3 V.S.A. § 129a(b)(2).
3. Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession is unprofessional conduct. 3 V.S.A. § 129a(a)(3).
4. No person shall practice psychotherapy unless the person is entered on the roster of psychotherapists who are nonlicensed and noncertified. 26 V.S.A. § 4083(a).
5. A clinical supervisor for a licensed clinical applicant means a licensed physician or a licensed osteopathic physician who has completed a residency in psychiatry, a licensed psychologist, a licensed clinical social worker, or a person certified or licensed in another state or Canada in one of those professions, or in a licensed profession which is their substantial equivalent, who is responsible for an applicant's work. Administrative Rules for Clinical Social Workers 2.1(3).
6. No person shall practice or attempt to practice clinical mental health counseling, nor shall any person use in connection with the person's name any letters, words or insignia indicating or implying that the person is a clinical mental health counselor unless the person is licensed in accordance with this chapter. 26 V.S.A. § 3262(a).

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Facts

7. Respondent is a psychotherapist included in the State of Vermont's Roster of Nonlicensed and Noncertified Psychotherapists, holding roster number 097-0068850.
8. Respondent was originally placed on the roster on July 23, 2010 and Respondent's rostered status lapsed on November 30, 2010. The Respondent has never held any other type of licensure in Vermont.
9. The Respondent has been practicing psychotherapy at Health Care and Rehabilitation Services ("HCRS") located in Springfield, Vermont since October 29, 2007 and was previously employed by HCRS. Specifically the Respondent provides individual and group Cognitive Behavioral Therapy, Dialectical and Behavioral Therapy and Expressive Arts Therapy services.
10. In 2006, the Respondent was informed by a written memorandum sent by HCRS that she needed to be put on the roster of non-licensed, non-certified psychotherapists.
11. On September 29, 2008 the Respondent was reminded by HCRS employee C.M. that she needed to be put on the roster. On March 13, 2009 C.M. reminded the Respondent in writing that she needed to be placed on the roster and reminded the Respondent that she would be reimbursed for the expense. On May 14, 2009 HCRS employee E.M. reminded the Respondent in writing that she needed to apply to be on the roster. On or about December 12, 2009 the Respondent was reminded by E.M. that she needed to apply for the roster. On or about January 7, 2010 the Respondent was again reminded by E.M. that she needed to apply for the roster. On or about February 18, 2010 the Respondent was again reminded by E.M. that she needed to apply for the roster.
12. On or about June 21, 2010 the Respondent submitted an application to be placed on the roster. In this application the Respondent claimed that she was a licensed mental health counselor in Massachusetts, but was unsure when her license was issued.
13. On or about June 22, 2009 Sharon Poitras filed an application for licensure as a licensed clinical social worker. The required report of supervised experience was signed by the Respondent who indicated that the supervision occurred in Vermont at HCRS. The Respondent listed her license type as "LMHC" "MA/NH" Date issued "12/31/07(MA) active in MA". The Respondent wrote a report of clinical supervision for Sharon Poitras's Vermont application. The Respondent signed off on this application as "LMHC" even though she has never been licensed in Vermont as a licensed mental health counselor.

Charges

14. Respondent, by her acts as set forth in paragraphs 7 - 13 above, has engaged in unprofessional and unlicensed conduct pursuant to, and in violation of the statutory sections set forth in paragraphs 2-6 above. Specifically the Respondent practiced

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psychotherapy when not on the roster and despite being told to become rostered numerous times by her employer. The Respondent used the title LMHC when signing off on a document pertaining to her supervision of an applicant for licensure as a Vermont licensed clinical social worker. The Respondent provided supervision, in Vermont to a person applying for Vermont licensure, and the Respondent at the time held no license or other mental health credentials in Vermont.

Understandings

15. Respondent admits the facts above are true and that the conditions below are necessary to protect the public.
16. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
17. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
18. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
19. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.
20. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
21. Respondent voluntarily waives her right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
22. Respondent agrees that the Order set forth below may be entered by the Board.

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ORDER

- A. Respondent Christina Thurston's roster status is hereby **SUSPENDED** for a period of sixty (60) days commencing with the date of entry of this Stipulation and Consent Order. Immediately thereafter, the Respondent's roster status will be **CONDITIONED** for a period of one (1) year. The conditions are as follows:

(1) Administrative Penalty

The Respondent shall pay in full by the end of the conditioned period an administrative penalty in the amount of one-thousand dollars (\$1,000.00). Failure to pay in full within one year of being conditioned shall constitute a violation of this order.

(2) Violation of the Consent Order.

If Respondent violates the terms of this Stipulation and Consent Order in any respect, the Board, after giving Respondent notice and an opportunity to be heard, may revoke the terms of the conditional roster status and take further disciplinary action. If a complaint or charges are filed against Respondent during the term of this Consent Order, the conditional roster period shall be extended until the matter is final.

(3) Completion of Conditional Period.

After the conditional period or upon payment in full of the administrative penalty, the Respondent may petition the Board to remove any and all conditions on her roster status. The Respondent must present proof that she has fully complied with the terms of this Order.

- B. Respondent shall bear the cost of compliance with the steps which Respondent has agreed to undertake pursuant to this Consent Order.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- D. This Stipulation and Consent Order will remain part of the Respondent's rostering file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 7/14/11

By: [Signature]

Edward G. Adrian
State Prosecuting Attorney

CHRISTINA THURSTON
RESPONDENT

Dated: 1/16/11

By: [Signature]

Christina Thurston

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APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 2/17/11

By: Mailep Turcotte
Chairperson

Date of Entry: 2-18-11

pst.thurston.stip

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